

SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF KINGS : CIVIL TERM

CHANELL SHIPLEY,

Plaintiff,

-against-

SUMMONS

Index Number _____

THE CITY OF NEW YORK, NEW YORK CITY
 POLICE DEPARTMENT, Sergeant Kevin
 Hannah, 88th Precinct, P.O. Louis
 Martinez Shield #114 88th Precinct,
 And P.O. John and Jane Does the
 individual defendants, sued individually
 and in their official capacities,

Defendant(S).

TO THE ABOVE DEFENDANTS:

PLEASE TAKE NOTICE THAT YOU ARE SUMMONED to appear and to answer the complaint in this action and to serve a copy of your answer on plaintiff's attorney(s) within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty [30] days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: January 27, 2016
 New York, New York


 Gary S. Villanueva

Attorney for Plaintiff
 Law Office of Gary S. Villanueva
 11 Park Place, Suite 1601
 New York, New York 10007
 Phone: (212) 219-0100

2016 APR 27 P 3:04

CITY OF NEW YORK
 OFFICE OF CORP. COUNSEL
 COMMUNICATIONS UNIT

By Hand Delivery Served upon:

Corporation Counsel

Department of Law
100 Church Street
New York, New York 10007
Phone: (212) 669-8750
Counsel for Defendants

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS : CIVIL TERM
CHANELLE SHIPLEY,

Plaintiff,

COMPLAINT

-against-

Index # _____

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, SGT KEVIN
HANNAH, 88TH Pct, P.O. Louis Martinez
Shield # 114 88th Precinct, And
P.O. John 88th Pct, and EMS Officer
Marrero, P.O. JOHN and JANE DOES
the individual defendants sued
individually and in their official
capacity,

Defendant.

Basis of Venue: Occurrence
of incident- Greene and
Carlton Ave, Brooklyn, N.Y

Jury Trial Demanded

Plaintiff Chanelle Shipley, by and through her counsel,
Gary S. Villanueva, Esq., upon information and belief, allege as
follows:

PRELIMINARY STATEMENT

1. This is a tort action, common law and civil rights, action in
which the Plaintiff seeks relief for the violation of
Plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth,
Fifth, Sixth, and Fourteenth Amendments to United States
Constitution; the laws of the State of New York; and the New
York State Constitution. Plaintiff's claims arise from an arrest
that arose on or about January 28, 2015. In addition, Plaintiff
Chanelle Shipley has further claims that arose on January 28,
2015. During the incident, the City of New York, and members of
the New York City Police Department ("NYPD") subjected Plaintiff
to, among other things: false arrest; assault; battery;

CITY OF NEW YORK
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2016 APR 27 PM 3:04

unreasonable force; failure to intervene; conspiracy; malicious prosecution; negligence; intentional and negligent infliction of emotional distress; negligent hiring and retention, training and retraining of incompetent and unfit employees; implementation and continuation of an unlawful municipal policy, practice, and custom; and respondent superior liability. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the January 28, 2015 incident alleged in this complaint, the Plaintiff served upon defendant City of New York a Notice of Claims setting forth the name and post office addresses of the Plaintiff, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.
3. More than 30 days have elapsed since Plaintiffs demands and/or claims were presented to defendant City of New York for adjournment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.
4. Defendant City of New York has not requested a physical examination of Plaintiff. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State of New York, Kings County; and jurisdiction is proper because the Supreme Court of the State of New York, Kings County has jurisdiction over Plaintiffs' state law causes of actions.

PARTIES TO THE CASE

6. The *Plaintiff* in this proceeding is Chanelle Shipley, who resides at 535 Neptune Ave, Brooklyn, New York 11224.
7. The Plaintiff is represented by Gary S. Villanueva, from the Law Office of Gary S. Villanueva, 11 Park Place, Suite 1601, New York, New York 10007.
8. At all times herein, defendant City of New York is municipal corporation organized under the laws of the State of New York, which violated Plaintiffs rights as described herein.
9. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.
10. At all times alleged herein, defendant Sgt. Kevin Hannah, 88th Pct., P.O. Louis Martinez Shield # 114 88th Pct., and P.O. John 88th Pct., and EMS Officer Marrero, the 88th Precinct located in Kings County, P.O. John and Jane DOE(s), or other as yet

unknown NYPD assignment, who violated Plaintiffs rights as described herein.

11. The individual defendants are sued in their individual and official capacities.
12. The Defendants are represented by Corporation Counsel and there main office is located at The Department of Law, 100 Church Street, New York, New York 10007.

STATEMENT OF FACTS

13. The *Plaintiff* has stated that "[O]n or about January 28, 2015, between approximately 12:20 am and 8:00 am in the vicinity of 298 Classon Avenue, Brooklyn, New York and in or around 369 Carlton Avenue, Brooklyn, New York, and in various and other sundry places] including the 88th police precinct. The plaintiff was assaulted by the NYPD Police Officers without legal cause or justification, subjected to police misconduct, subjected to excessive physical force by police officers, and furthermore was subjected to the negligence of the police officers causing personal injuries, pain, suffering to wit: lacerations and permanent scars on the claimant's left and right wrists, lacerations, burns, bruises, nerve damage and tingling sensations, and limitations of the range of motion both of the

claimant's arms. These permanent physical injuries required hospitalization and medical care".

14. The Plaintiff further stated that "the physical assault, misconduct, excessive use of force, and negligence by police officers included, but was not limited to, handcuffing both of claimant's wrists so tightly due to either malice or negligence that circulation was cut off in both arms and hands for a period of approximately three hours that caused such extreme swelling that the officers could not remove the handcuffs with the use of a standard handcuff key or the ordinary exercise of caution. Instead, a police officer[s] contacted EMS, and EMS personnel used an electric metal saw or other metal tool to saw off the handcuffs. The metal saw or other metal tool caused lacerations, bruises, permanent scars to both wrists, and permanent discoloration".
15. In addition, the *Plaintiff* has stated that "the police officers punched or otherwise physically struck the claimant repeatedly about the head, ear, and face, causing physical injury".
16. The *Defendant(s)* have been notified of these claim(s) by the filed Personal Injury Claim Form (dated 4/24/15), submitted to the Office of the Comptroller.
17. During the mentioned incident, Police Office John (with glasses), along with Police Officer Martinez and Sergeant Hanna,

aggressively punched plaintiff in the head and face, used his knee to strike plaintiff on her back area.

18. There were two incidents causing personal injury to Plaintiff involving handcuffs. The Plaintiff states that at the scene of the incident P.O. John put on the handcuffs and made them too tight to inflict harm on the Plaintiff. The Plaintiff complained of the injury at the scene and at the 88th Precinct, and Plaintiff was taken to a Hospital in Brooklyn. The Plaintiff arms were in excruciating pain, there was swelling of the arms and the Police Officers put the Handcuffs back on Plaintiffs arms.
19. After returning to the Precinct, a pair of pink handcuffs were put on Plaintiff arm(s) so she can be transported to court. The Officers put the handcuffs on too tight. As a result, the hand-cuff key was stuck and the handcuffs were still on too tight.
20. Officers first used tools to get the key out to assist in getting the handcuffs off. The tools did not work to remove the key or to unlock [or disconnect] the handcuffs.
21. EMS came and did two procedures: using tools they could not get the key out or the handcuffs off.
22. EMS finally used a blow torch, they could not put leather to protect the Plaintiff skin from the hot metal and fire because the cuffs were too tight against Plaintiffs skin. EMS

used a blow torch to burn off the handcuffs and a drill to finally remove the cuff off her arm.

23. The Plaintiff was inflicted with second degree burns and severe bruises to her arm and wrists where the handcuffs were placed.

FIRST CLAIM

(UNREASONABLE FORCE)

24. Plaintiff repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

25. The individual defendants' use of force upon Plaintiffs was objectively unreasonable.

26. The individual defendant Officers did not have an objective and/or reasonable basis to use any degree of force against Plaintiff, since Plaintiff was unarmed, compliant, and did not resist arrest.

27. Those defendants who did not touch Plaintiffs, witnessed these acts, but failed to intervene and protect Plaintiff from this conduct.

28. Accordingly, the defendants are liable to Plaintiff for using unreasonable force.

SECOND CLAIM

(ASSAULT)

29. The Plaintiff repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

30. Among other things as described above, individual defendants' battery, assault, and unreasonable use of force against Plaintiff placed her in fear of imminent harmful and offensive physical contacts.

31. Accordingly, defendants are liable to Plaintiffs under New York State law for assault.

THIRD CLAIM

(BATTERY)

32. The Plaintiff repeats and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

33. Among other things as described above, the individual defendant's unreasonable use of force against Plaintiff were illegal physical contacts.

34. Accordingly, defendants are liable to Plaintiff under New York State law for battery.

FOURTH CLAIM

(FAILURE TO INTERVENE)

35. The Plaintiff repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

36. Defendants had a reasonable opportunity to prevent the violations of Plaintiffs' constitutional rights, but they failed to intervene.

37. Accordingly, the defendants are liable to Plaintiff for failing to intervene to prevent the violation of Plaintiffs'

constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FIFTH CLAIM

(CONSPIRACY)

38. The Plaintiff repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

39. Defendants are liable to Plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to Plaintiffs under 42 U.S.C. § 1983.

SIXTH CLAIM

(MONELL CLAIM)

40. The Plaintiff repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

41. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by the Plaintiffs by unlawfully stopping individuals solely on the basis of race, and by demonstrating deliberate indifference to the Plaintiffs' constitutional rights by failing to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retaining and utilizing them despite being aware and on notice that they were likely to violate the Plaintiffs' constitutional rights.

42. The existence of the aforesaid unconstitutional policy, practice and custom of profiling minorities may be inferred by the August 12, 2013 decision in *Floyd, et al. v. City of New York, et al.*, 08-cv-1034-SAS, finding that the NYPD had violated the rights of thousands of citizens with respect to the application of its "Stop and Frisk" policy.

43. Accordingly, the City of New York is liable to the Plaintiff for violating the Plaintiffs' constitutional rights under the Fourth and Fourteenth Amendments.

RELIEF REQUESTED

44. By reason of the facts and circumstances stated above, the *Plaintiff's* severely physically and mentally injured by the *Defendant(s)* intentional actions and acts of negligence. The *Plaintiff* seeks from *Defendant(s)* a monetary amount of \$2,000,000.00 in damages plus cover all costs, fees, and expenses associated in litigating this processing.

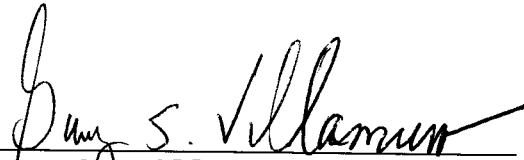
45. The *Plaintiff's* moving papers are timely filed before one year and 90 days following the incident that took place on or about January 28, 2015. The *Plaintiff* request that this Court grant leave to amend the Complaint and the Caption of this proceeding following Discovery to allow Plaintiff to address the role of specific Police Officers and to allege which specific

actions where intentional and/or negligent in this instant matter.

CONCLUSION

WHEREFORE, the *Plaintiff* demands judgment against the *Defendant* in a monetary amount of \$ 2,000,000.00 plus all costs, fees, and expenses that resulted from litigating this proceeding, and grant any other relief this Court finds to be just and proper.

Dated: January 27, 2016
New York, New York


Gary S. Villanueva
Attorney for Plaintiff
Law Office of Gary S. Villanueva
11 Park Place, Suite 1601
New York, New York 10007
Phone: (212) 219-0100

By Hand Delivery:
Corporation Counsel
Counsel for Defendant(s)
100 Church Street
New York, N.Y. 10007
Phone: (212) 669-8750

SUPREME COURT OF THE STATE OF NEW YORK
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SHIPLEY CHANELLE,

Plaintiff,

VERIFICATION

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THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, Sgt Kevin Hannah,
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88th Pct., and P.O. John 88th Pct., and
EMS officer Marrero, P.O. John and JANE DOES
the individual defendants sued individually
and in their official capacities,
Defendants.

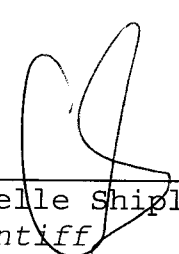
Basis of Venue:
Occurrence of
incident- Greene
and Carlton Ave
Brooklyn, N.Y.

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

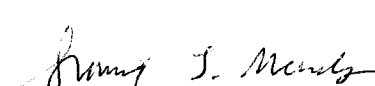
I, Chanelle Shipley, being duly sworn, depose and say:

I am the *Plaintiff* in the above titled action. I have read
the foregoing complaint and know the content thereof; the same
are true to my knowledge, except as to matters therein stated to
be alleged on information and belief, and as to those matters I
believe them to be true.



Chanelle Shipley
Plaintiff

Sworn to before me this
27th day of JANUARY, 2016



Notary Public

SAMUEL J. MENDEZ
Notary Public, State of New York
No. 02ME6327148
Qualified in New York County
Commission Expires June 29, 2019

SUPREME COURT OF THE STATE OF NEW YORK
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SUMMONS AND COMPLAINT

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the individual defendants sued
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Defendant.

SUMMONS AND COMPLAINT

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Attorney for Plaintiff Chanelle Shipley